

Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail, and Defendant has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c). However, Plaintiff did not request sanctions and did not provide any basis for determining a reasonable amount. No sanctions will be imposed.

Plaintiff's Motion to Deem Request for Admission, Set One Admitted by Defendant Sandra Pangelina is **GRANTED**. A proposed order has been lodged and will be executed.

IN RE: WITT

CASE NUMBER: 26CV-0211146

Tentative Ruling on Petition for Change of Name: Petitioner William Eulis Witt seeks to change his name to William James Witt. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

WRIGHT VS. BURLINGTON COAT FACTORY OF TEXAS, INC, ET AL.

CASE NUMBER: 25CV-0209085

Tentative Ruling on Motion for Summary Judgment: Defendant Burlington Coat Factory Texas, Inc. ("BCFT") moves for summary judgment as to all claims asserted against it. The motion is brought on the grounds that BCFT did not breach their duty of care. Plaintiff Terry Wright opposes the motion.

Evidentiary Objections. Plaintiff objections to Exhibit A on the grounds that it is not based on personal knowledge and to Exhibit D on the grounds that it has not been authenticated. Plaintiff's objections are **SUSTAINED**. Defendant objections to the consideration of any arguments and/or facts raised by the deposition of PQM Spencer Webster because the deposition was not provided as an exhibit. Defendant also objection to the photograph contained in the Declaration of Anthony Andre, Ph.D. purportedly showing the vestibule area of the subject store because it was not disclosed during discovery and has not been authenticated. Defendant's objections are also **SUSTAINED**.

Factual Background. This is a personal injury action arising out of a trip and fall at the Burlington Coat Factory store located in Redding, California. Plaintiff alleges that on December 2, 2023, she entered the vestibule area of the store during a time when it had rained or was raining and slipped and fell resulting in her injuries due to a hazard created by rainwater on the floor. Plaintiff alleges that BCFT's failure to maintain safe conditions and/or adequately warn of the hazard was the cause of her injuries.

Standard on Summary Judgment. The party moving for summary judgment bears the initial burden to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. There is a genuine issue of material fact only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* at 845. A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that